

22 April 2026

Law Enforcement
SAPS –SA Police Services
Traffic Police
Immigration Inspectorate
Health Services
Defence Force

Re: Application for Asylum Renewal including Abandoned Asylum Seeker Status - Delayed due to Covid19 – Extended Lockdown – National Disaster Act

Applicant: - Denis Leonard Phiri – CTRMW100830509 (nationality: Malawian)

The abovementioned could not renew and continue to extend their asylum seeker documents due to a provision in the Refugee Amendment Act of January 2020 wherein someone who has not renewed their asylum within 30 days was deemed to have abandoned their asylum status and Home Affairs unilaterally refused to renew their asylum. Now in a protracted legal and court battle the Constitutional Court struck down this provision forcing DHA to renew these asylum status but due to Home Affairs this has become a lengthy process to finalise.

CONSTITUTIONAL COURT OF SOUTH AFRICA (Abandoned Asylum Seeker)
Scalabrini Centre of Cape Town and Another v Minister of Home Affairs and Others
CCT 51/23 - Date of judgment: 12 December 2023

On Tuesday, 12 December 2023 at 10h00, the Constitutional Court handed down judgment in an application for the confirmation of an order of constitutional invalidity made by the High Court of South Africa, Western Cape Division, Cape Town (High Court) on 13 February 2023. The High Court declared sections 22(12) and 22(13) of the Refugees Act 130 of 1998 (Refugees Act) unconstitutional and invalid.

The applicants are Scalabrini Centre of Cape Town (Scalabrini) and its trustees. Scalabrini is a non-profit trust mandated to assist refugees and asylum seekers. The respondents are the Minister of Home Affairs, the Director-General of the Department of Home Affairs (DHA) and the Chairperson of the Standing Committee for Refugee Affairs (Standing Committee). The amicus curiae is the Consortium for Refugees and Migrants in South Africa (CoRMSA). CoRMSA is a non-profit organisation that advances the rights of refugees and asylum seekers.

To obtain refugee status, the Refugees Act requires an asylum seeker to apply for asylum. The DHA has a severe backlog in asylum applications. It takes approximately five years for an asylum application to be decided. While their asylum application is pending, asylum seekers are issued with visas, which entitle them to stay and work in South Africa. These visas are usually issued for three or six months and must be renewed numerous times.

The respondents initially attributed the backlog to the failure of asylum seekers to renew their visas. On 1 January 2020, in an attempt to remedy the backlog, the Refugees Act was amended to introduce sections 22(12) and 22(13) (the impugned provisions). The impugned provisions require an asylum seeker to attend a Refugee Reception Office to renew their visa within one month of its expiry. If they fail to do so, their asylum application is deemed to have been abandoned and they must either leave South Africa or be deported, unless they provide satisfactory reasons to the Standing Committee for the failure to renew their visa.

Scalabrini submitted that the impugned provisions have severe consequences for asylum seekers. Where an asylum seeker fails to renew their visa in time, their asylum application, in which they may have a valid refugee claim, is automatically deemed to have been abandoned, regardless of its merits. Therefore, an asylum seeker could be deported to the country from which they fled without their asylum application being considered on its merits as required by the Refugees Act. For these reasons, Scalabrini submits that the impugned provisions infringe fundamental rights and that such infringement is unjustifiable and thus constitutionally invalid.

It argued that the impugned provisions violate the principle of non-refoulement (prohibiting the return of refugees to a territory where they may face persecution, torture, inhumane or degrading treatment) in both international and South African law. Scalabrini further submitted that the impugned provisions also violate constitutional rights, including the rights to life, dignity, and freedom and security of the person. CoRMSA submits that children's rights are also violated by the impugned provisions. The Respondents did not dispute that the impugned provisions violate these rights.

Scalabrini argued further that the violation of rights by the impugned provisions is not justifiable under section 36 of the Constitution and is therefore constitutionally invalid. Scalabrini's main argument was that the impugned provisions are not rationally connected to the alleged purpose of clearing the DHA's backlog and there are less restrictive means to achieve this purpose. CoRMSA argued that the impugned provisions are incompatible with the best interests of the child. While the respondents initially opposed the proceedings in the High Court on the basis that the impugned provisions serve a lawful government purpose (to reduce the DHA's backlog) and were therefore rational, the respondents did not oppose the confirmation of constitutional invalidity of the impugned provisions.

They conceded that there was a need to do away with the impugned provisions as a whole. The High Court declared the impugned provisions constitutionally invalid to the extent that they provide that asylum seekers who have not renewed their visas within one month of the date of its expiry, are considered to have abandoned their applications.

In a unanimous judgment by Schippers AJ, the Court found that the impugned provisions were directly at odds with the principle of non-refoulement. Further, the impugned provisions violated a number of constitutional rights. They violated the right to dignity by cutting asylum seekers off from essential services needed for a dignified life: banking, education, and healthcare. They also exposed asylum seekers – and their children – to the constant risk of arrest, detention, and deportation, in contravention of the rights to life and personal liberty.

All this, simply because a visa has not been renewed. Children bear the brunt of the impugned provisions' adverse effects. Ordinarily, a child's asylum application is closely linked to that of their parents. When a parent's asylum application is abandoned, it frequently results in a similar fate for the child's application. Consequently, due to bureaucratic processes beyond their control, children are rendered vulnerable to arrest and detention, and are stripped of the protections they might otherwise have rightfully received. Even more troubling, they are exposed to the peril of deportation to the very country from which they sought refuge. This cannot be in their best interests.

Apart from the infringement of fundamental rights, the Court determined that the impugned provisions are arbitrary and irrational, lacking a connection to a legitimate government purpose. The evidence indicated that the failure to renew visas, often resulting from prolonged queues, financial constraints associated with reaching refugee reception offices, and the necessity to take time off from work, has not contributed to the backlog of asylum applications. Furthermore, it has not imposed a substantial burden on the Department. Therefore, the Court found that these provisions lack a reasonable basis and fail to serve a legitimate government purpose.

Consequently, the Court confirmed the High Court's declaration of constitutional invalidity, as the impugned provisions violate the principle of non-refoulement, infringe the right to dignity, unjustifiably limit the rights of children, and are arbitrary and irrational. The declaration of invalidity is retrospective to 1 January 2020, the date on which subsections 22(12) and 22(13) of the Refugees Act came into operation.

Home Affairs finally reopened refugee offices following two-year closure

Refugees were told to renew their papers using an online system that went live on 15 April 2021, but many reported insurmountable difficulties with the system.

Now, the department says new asylum applications and family joining for children born outside South Africa is available again but in the form of a hybrid system wherein applicants are allowed to physically go to a Refugee Reception Office

The department also said online services would continue to be provided and requests for appointments should be directed to the relevant refugee reception offices in Pretoria, Cape Town, Durban, Musina and Gqeberha.

Section 21 of the Refugees Act provides for a procedure in which applications for asylum are processed by Refugee Reception Officers and Refugee Status Determination Officers. The provision reads:

“(1) An application for asylum must be made in person in accordance with the prescribed procedures to a Refugee Reception Officer at any Refugee Reception Office.

(2) The Refugee Reception Officer concerned—
(a) must accept the application form from the applicant;

- (b) must see to it that the application form is properly completed, and, where necessary, must assist the applicant in this regard;
- (c) may conduct such enquiry as he or she deems necessary in order to verify the information furnished in the application; and
- (d) must submit any application received by him or her, together with any information relating to the applicant which he or she may have obtained, to a Refugee Status Determination Officer, to deal with it in terms of section 24.

(3) When making an application for asylum, every applicant must have his or her fingerprints or other prints taken in the prescribed manner and every applicant who is 16 years old or older must furnish two recent photographs of himself or herself of such dimensions as may be prescribed.

(4) Notwithstanding any law to the contrary, no proceedings may be instituted or continued against any person in respect of his or her unlawful entry into or presence within the Republic if—

- (a) such person has applied for asylum in terms of subsection (1), until a decision has been made on the application and, where applicable, such person has had an opportunity to exhaust his or her rights of review or appeal in terms of Chapter 4; or
- (b) such person has been granted asylum.

Refugees who arrived after lockdown have no way to apply for asylum

<https://www.dailymaverick.co.za/article/2021-10-08-refugees-who-arrived-after-lockdown-have-no-way-to-apply-for-asylum/> and this still remains that

“Many newcomer asylum seekers are therefore at risk of arrest, detention, deportation and are struggling to access basic services due to their lack of documentation,” said Attorney Jessica Lawrence, of Lawyers for Human Rights (LHR).

Lawrence said that during a recent meeting, a Home Affairs official said that newcomer asylum seekers should all have been issued with an asylum transit visa at the border, which would normally be extended by an immigration officer later.

“Asylum transit visas are only valid for five days. Though he did not say this, it was clear that he therefore deemed this as appropriate documentation for newcomer asylum seekers pending the re-opening of the RROs,” she said.

Scalabrini court victory for people seeking asylum in South Africa

Home Affairs has been interdicted from implementing certain provisions of the Refugees Act and new Regulations (both implemented on 1 January 2020), which sought to return asylum seekers back to their home country where they could be face detention without trial, rape, torture, or death, merely because he or she was a month late in renewing a visa.

On 30 November 2020, Judge Baartman handed down judgement in the Western Cape High Court, which suspended the operation of certain provisions of the Refugees Act, 1998 and the 2018 Regulations thereto (both of which came into effect on 1 January 2020). The suspended provisions are commonly referred to as the 'abandonment provisions'.

The suspension will operate until the constitutional attack against the impugned provisions has been adjudicated on by the Western Cape High Court and, to the extent necessary, confirmed by the Constitutional Court and this was confirmed by **CONSTITUTIONAL COURT OF SOUTH AFRICA (Abandoned Asylum Seeker) Scalabrini Centre of Cape Town and Another v Minister of Home Affairs and Others CCT 51/23 - Date of judgment: 12 December 2023**

The abandonment provisions provided that in the event that an asylum seeker fails to renew their asylum visa timeously, their applications for asylum are deemed abandoned. Arrest and deportation would follow for individuals with valid and undecided claims for asylum; back to countries of origin where they could face death, torture, sexual violence, and other forms of persecution from which they originally fled, or to countries experiencing grave disturbances to the public order. Only where an asylum seeker has a compelling reason (and proof thereof) for delaying to renew a permit following a lapse (such as hospitalisation or imprisonment) can the Department of Home Affairs pardon the late renewal.

This is deeply problematic as it means that refugees can be returned to face persecution, without ever having the substantive merits of their asylum application determined. It also leaves asylum seekers vulnerable in South Africa as essentially undocumented foreigners who will struggle to access health care, employment and education while they await the decision of whether their reason for late renewal meets the Department of Home Affairs high threshold.

The reality for asylum seekers is that they are frequently required to renew their asylum visas. In the renewal process, they experience extraordinary delays caused by the administrative failures of the Department of Home Affairs. These are often exacerbated by socio-economic factors such as not having the means to travel to far away Refugee Reception Offices as frequently as is required, waiting in long queues at the Refugee Reception Offices, facing corruption from officials who refuse to renew visas without bribes, or the general inefficiency of the Refugee Reception Offices that are over-worked but under-staffed.

In light of these realities many asylum seekers fail to renew their visas for valid reasons. Judge Baartman delivered a powerful judgment, emphasising that the case does not involve imaginary victims – the suspended abandonment provisions affect real asylum seekers who could face serious human rights violations should the provisions continue to operate. She criticized the Department's conduct in the case, which was characterised as regrettable and unhelpful.

The judgement will come as a relief to many asylum seekers who have been unable to renew their visas for valid reasons and will give them an opportunity to do so without the fear of being treated as an illegal foreigner and returned home. This includes many asylum seekers who may have been prevented from renewing their asylum documents prior to the pausing of services at Refugee Reception Offices during the

national lockdown – a pause which is set to remain in effect until the matter has been remedied by parliament.

Sections of the refugee law now mean that asylum-seekers whose documentation expires for thirty days or more face arrest and deportation, as their claims would be considered 'abandoned'. These people – who have sought refuge and safety in South Africa – could be deported to danger or death in their countries of origin for no reason other than they were a month late in renewing a visa.

The case sought to declare pertinent sections of South Africa's recently changed refugee law to be set aside and declared unconstitutional.

The difficulties of ensuring a valid asylum seeker visa

In our daily work, we consult with many asylum-seekers who, despite their best efforts to extend their asylum seeker visas, are simply unable to do so. Remaining on a valid asylum seeker visa is no easy feat: Many asylum seekers face long journeys to Refugee Reception Offices (RRO) to apply for an extension of their permit. Now of course with lockdown it is even more difficult, the online renewal system is slow fraught with administrative delays in Refugee offices with staff working 1 week in 2, every second week, those with comorbidities work 1 week in 3. So if a file was assigned to a person no-one else will work on it. A further complication due to covid 19 if one member of a team test positive with covid 19, the entire team is sent home for self-isolation for 10 days.

Depending on their nationality, they may only approach a RRO on certain days. Should they manage to arrive on the right day, under-staffed Refugee Reception Offices result in long snaking queues. Not everyone is attended to. Asylum seeker visas are extended for anything between a month and six months, meaning the process described above must be undertaken on a regular basis.

The Department of Home Affairs has itself confirmed that the asylum process is subject to colossal administrative delays: the process of considering an asylum application takes, on average, more than 5 years.

Provisions run counter to South African constitution and international law

The 'abandonment' provisions of the Refugee Amendment Act run counter to the fundamental legal and constitutional basis of refugee law, namely the right of non-refoulement. This is a fundamental of international and national refugee law that prevents states from forcibly returning a person to a country or place where they would face reasonable risk of harm or death.

The provisions allow for a person with a valid asylum claim to be returned to their country of origin to face persecution merely because they have failed to meet a procedural requirement.

The consequences of this system in South Africa will be devastating. Thousands of people from across the continent, and the world, would be barred from asylum for no reason other than they were a month late in renewing a visa.

Constitutional Court Case Demand

The case is based on the requests that these Sections 22(12) and (13) of the Refugee Amendment Act and Regulation 9 of the Refugee Regulations are declared unconstitutional and invalid, and that they are set aside.

- An asylum seeker in this position remains a lawful asylum seeker. The legislative provisions that deemed their status "abandoned" for late renewal have been declared unconstitutional and invalid retrospectively.
- Lawful asylum seekers are entitled to apply for business and trading licences. There is no blanket prohibition on self-employment for asylum seekers.
- Municipalities, as organs of state, are obliged to accept and process such applications. A refusal to do so based on the applicant's status as an asylum seeker or a delay in visa renewal by the Department of Home Affairs (DHA) would be unlawful.

Legal Status of an Asylum Seeker Awaiting Renewal

The foundational issue is the client's legal status. The letter from SA Migration International correctly identifies that this question was definitively settled by the Constitutional Court.

- . The Effect of *Scalabrini Centre of Cape Town v The Minister of Home Affairs***

The Constitutional Court judgment in Scalabrini is dispositive of the "abandoned" status issue.

- The Impugned Provisions: Subsections 22(12) and 22(13) of the Refugees Act, which came into force on 1 January 2020, created a system where an asylum seeker who failed to renew their visa within one month of expiry was automatically deemed to have "abandoned" their application. The consequences were severe: they were to be treated as illegal foreigners, barred from re-applying for asylum, and faced arrest and deportation.

- **Conclusion on Legal Status:** As of the Scalabrini judgment, the legal basis for considering an asylum seeker's status to have lapsed or been abandoned due to a delay in renewal has been entirely removed from South African law. Therefore, an asylum seeker who has taken the required steps to apply for renewal remains lawfully present in the Republic with all the associated protections, pending the DHA's finalisation of that renewal. The delay by the DHA does not and cannot render the individual's status unlawful. The possession of proof of application for renewal is crucial evidence of this continued lawful status.

- **The Right of a Lawful Asylum Seeker to Trade or be Self Employed**

Once the client's lawful status is established, the question turns to their right to engage in self-employment, such as trading. The Supreme Court of Appeal (SCA) judgment in *Somali Association of South Africa v Limpopo Department of Economic Development* provides a determinative answer.

- **The Ruling in *Somali Association of South Africa**

- **The SCA's Finding:** The court unequivocally declared that asylum seekers and refugees are entitled to apply for new and renewed business or trading licences. It held that the closure of businesses operated by them under valid permits was unlawful and invalid.

- **Reasoning:** The SCA's reasoning directly refutes the common arguments used to deny asylum seekers trading rights:

- **No Blanket Prohibition:** The court held that neither section 22 of the Constitution nor the Refugees Act creates a blanket prohibition on asylum seekers and refugees seeking employment, and importantly, it does not restrict the term "employment" to mean only wage-earning work.

- **Practical Application:** The SCA dismissed the argument that licensing legislation requiring an "identity number" was a bar to asylum seekers. It noted that asylum seeker permits contain unique identification numbers, which are sufficient to comply with such administrative requirements.

The Obligation on Municipalities to Process Licence Applications

The conclusions from the Scalabrini and Somali Association judgments create a clear legal duty for municipalities.

- A municipality is an organ of state and is bound by the Constitution and the orders of the superior courts.
- The Scalabrini judgment confirms that an asylum seeker awaiting renewal from the DHA is lawfully present.
- The Somali Association judgment confirms that a lawful asylum seeker has the right to apply for a trading licence.
- Therefore, a municipality has a legal obligation to accept and process a business licence application from such an individual.
- A refusal to do so based on the grounds that the applicant is an asylum seeker, or that their visa renewal is pending with the DHA, would be unlawful, irrational, and contrary to established legal precedent. Such a refusal would perpetuate the very violation of dignity that the SCA sought to prevent.

We respectfully request you assist the abovementioned person and not hinder the abovementioned whilst they are subject to the effect and delays necessitated by the Lockdown and Covid-19 effects and knock-on effect.

Should you have any queries please do not hesitate to contact us

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Kind Regards

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